

IN THE SENATE

SENATE BILL NO. 1442, As Amended

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE IDAHO REFUGEE AND ILLEGAL ALIEN ACCOUNTABILITY ACT; PROVIDING A SHORT TITLE; AMENDING CHAPTER 4, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-467, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING AN AUDIT OF THE RESETTLEMENT OF REFUGEES; AMENDING CHAPTER 30, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-3015, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE IMMIGRATION STATUS AND NATIONALITY OF ARRESTED INDIVIDUALS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. SHORT TITLE. This act shall be known and may be cited as the "Idaho Refugee and Illegal Alien Accountability Act."

SECTION 2. That Chapter 4, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-467, Idaho Code, and to read as follows:

67-467. AUDIT OF REFUGEE RESETTLEMENT. (1) As used in this section:

(a) "Entity" means any corporation and foreign corporation; business corporation and foreign business corporation; for-profit and nonprofit unincorporated association; corporation sole; business trust, estate, partnership, trust, and two (2) or more persons having a joint or common economic interest; and a state, the United States, and a foreign government.

(b) "Illegal alien" means a person who is not lawfully present in the United States.

(c) "Refugee" is as defined in 8 U.S.C. 1101(42).

(d) "Resettlement services" means any service provided by an entity that entered into a grant, contract, or cooperative agreement with the United States department of state or other appropriate federal agency to provide for the reception and initial placement of refugees in the United States.

(2) Any entity incorporated under the laws of the state of Idaho providing resettlement services for refugees shall provide the legislature an annual audit of such services in accordance with the provisions of sections 67-466 and 67-705, Idaho Code.

(3) Such audit shall detail the following:

(a) The total number of refugees served;

(b) The nationality and gender of refugees served;

(c) The language abilities of refugees served;

(d) The successful rate of participation in language remediation programming for refugees served;

(e) The counties and municipalities where refugees served are housed;

1 (f) The housing units taken by refugees served; and

2 (g) The vital statistics, including the rates of communicable disease,
3 among refugees served.

4 (4) Any entity incorporated under the laws of the state of Idaho pro-
5 viding resettlement services for refugees is prohibited from harboring or
6 concealing an illegal alien, transporting an illegal alien in furtherance of
7 remaining unlawfully in the United States, or encouraging or inducing an il-
8 legal alien to remain in the United States unlawfully.

9 (5) Any entity providing refugee resettlement services to illegal
10 aliens shall account for the names and identifying demographics of such
11 aliens for the purposes of providing a catalog of names that may be matched
12 against federal immigration databases at the department of homeland secu-
13 rity, department of health and human services, and department of state.

14 SECTION 3. That Chapter 30, Title 67, Idaho Code, be, and the same is
15 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
16 ignated as Section 67-3015, Idaho Code, and to read as follows:

17 67-3015. IMMIGRATION STATUS AND NATIONALITY OF ARRESTED INDIVIDU-
18 ALS. (1) As used in this section:

19 (a) "Administration of criminal justice" means performance of any
20 of the following activities: detection, apprehension, detention,
21 pretrial release, post-trial release, prosecution, adjudication,
22 correctional supervision, or rehabilitation of accused persons or
23 criminal offenders. The administration of criminal justice shall in-
24 clude criminal identification activities and the collection, storage,
25 and dissemination of criminal history record information.

26 (b) "Arrest" is as defined in section 19-601, Idaho Code.

27 (c) "Illegal alien" means a person who is not lawfully present in the
28 United States.

29 (d) "Immigration status" means a person's legal right to be in the
30 United States or lack thereof.

31 (e) "Law enforcement agency" means any law enforcement agency of the
32 state or any political subdivision of the state, including the Idaho
33 state police and any municipal police department or county sheriff's
34 office.

35 (2) In the performance of the administration of criminal justice, all
36 law enforcement agencies shall, consistent with the provisions of section
37 18-9008, Idaho Code, verify and record the immigration status and national-
38 ity of any arrested individual.

39 (3) No later than October 1, 2026, each local, county, and state law en-
40 forcement agency shall file with the state controller a biannual report con-
41 taining: the immigration status and nationality of persons arrested; crime
42 statistics related to illegal aliens arrested in Idaho, including the num-
43 ber of illegal aliens transferred to federal officials; the crimes for which
44 such persons were arrested, if any; and any reason for noncompliance with the
45 provisions of this section, if applicable. The state controller shall make
46 such report available for inspection at all times on the website of the state
47 controller.

48 (4) If the attorney general determines that a local, county, or state
49 law enforcement agency is not in compliance with the provisions of this sec-

1 tion, he shall notify such agency of its noncompliance and that it has thirty
2 (30) days to cure the violation. If the law enforcement agency fails to cure
3 its noncompliance within thirty (30) days, the attorney general may seek
4 injunctive relief against the agency, and the agency may be subject to the
5 withholding of state funding by the legislature.

6 SECTION 4. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.